23TRCV02264 23TRCV02264

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

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Case Number: 23TRCV02264 Hearing Date: July 1, 2026 Dept: E

Superior Court

of California

County of Los

Angeles

Southwest

District

Torrance Dept. E

JUSTINA

ODEROHA, STEPHANIE ODEROHA, REBECCA ODEROHA, and OMOJEFE CHRISTOPHER EMESAHA

Plaintiff,

Case No.:

23TRCV02264

vs.

[Tentative]

Granted

ASHANTI

LATRICE COLE; MARIO L. ROSADO; FRESH ETHIOPIAN RESTAURANT; ELIAS F. BELETE;

SOLOMON SOLOMON; 1580 CENTINELA

ASSOCIATES,
LLC. AND DOES 1-100, inclusive,

Defendants.

Hearing
Date: July
1, 2026

Moving Party: Defendants Ashanti Latrice Cole and
Mario L. Rosado

Responding Party: Defendant 1580 Centinela Associates,
LLC

HEARING: Motion for Determination of Good Faith Settlement

The
Court considered the moving, opposition, and reply papers.

RULING

The
Court grants the Motion for Determination of Good Faith Settlement.

BACKGROUND

On July
13, 2023, Plaintiffs Justin Oderoha, Stephanie Oderoha, Rebecca Oderoha, and Omojefe Christopher Emesaha filed the Complaint against Defendants Ahanti Latrice Cole, Mario L. Rosado, Fresh Ethiopian Restaurant, Elias F. Belete, Solomon Solomon, and 1580 Centinela Associates LLC.

On April 23, 2026, Defendants
Ashanti Latrice Cole and Mario L. Rosado filed the Application for Good Faith Settlement after settling with Plaintiffs Justina Oderoha,

Stephanie
Oderoha, Rebecca Oderoha, and Omojefe Christoper Emesaha.

On June 17, 2026, Defendants Ashanti Latrice Cole and Mario L. Rosado filed the opposition.

On June 24, 2026, Defendant 1580 Centinela Associates, LLC filed the Reply.

LEGAL STANDARD

Pursuant to Code of Civil Procedure § 877.6

Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. Upon a showing of good cause, the court may shorten the time for giving the required notice to permit the determination of the issue to be made before the commencement of the trial of the action or before the verdict or judgment if settlement is made after the trial has commenced.

In the alternative, a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. The application shall indicate the settling parties, and the basis, terms, and amount of the settlement. The notice, application, and proposed order shall be given by certified mail, return receipt requested, or by personal service. Proof of service shall be filed with the court. Within 25 days of the mailing of the notice, application, and proposed order or within 20 days of personal service, a non-settling party may file a notice of motion to contest the good faith of the settlement. If none of the non-settling parties files a motion within 25 days of mailing the notice, application, and proposed order or within 20 days of personal service, the court may approve the settlement. The notice by a non-settling party shall be given in the manner provided in subdivision (b) of Section 1005. However, this paragraph shall not apply to settlements in which a confidentiality agreement has been entered into regarding the case or the terms of the settlement.

The
issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing and any counter affidavits filed in response, or the court may, at its discretion, receive other evidence at the hearing.

A
determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.

The
party asserting the lack of good faith shall have the burden of proof on that issue.

Under Tech-Bilt, Inc. v. Woodward-Clye
& Associates, the Court must analyze a motion for the determination of a good faith settlement on the basis of the following factors: (1) the amount paid in settlement, (2) the settlement amount versus trial amount, (3) the total recovery versus proportional liability, (4) financial conditions of the parties, (5) insurance policy limits of the settling party, (6) ¿collusion/fraud/tortious conduct between the settling parties, and (7) the allocation of the proceeds. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) However, “when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.) It is only when “the good faith nature of a settlement is disputed [that] it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors.” (Ibid.)

DISCUSSION

Defendant Centinela argues the proposed
$30,000 settlement between Plaintiffs and Defendants Cole and Rosado does not

constitute a good faith settlement under Code of Civil Procedure sections 877 and 877.6.

Defendant Centinela contends the settlement amount is grossly disproportionate to Plaintiffs' total claimed damages of $13,430,566.40, representing only 0.0022% of that figure. Defendant Centinela notes that Plaintiffs' past medical expenses alone total approximately $179,153.77, and that the $30,000 settlement covers only 16% of those expenses without accounting for pain and suffering or emotional distress. Defendant Centinela states that a settlement amount bearing no rational relationship to a settling defendant's proportionate share of liability constitutes an abuse of discretion, and that section 877.6 must not be used to allow a party to purchase protection from indemnification obligations at disproportionately low prices.

Defendant Centinela also argues that Defendants Cole and Rosado have failed to make the required evidentiary showing of proportionate liability. Defendant Centinela notes that while Defendants Cole and Rosado assert Defendant Rosado's proportionate share should be zero, Defendant Rosado's own declaration conspicuously omits any representation that he was not present at the scene, undermining that claim. Defendant Centinela further contends that no comparable proportionate liability analysis is offered for Defendant Cole at all, and that the insurance policy limits have limited relevance given the intentional tort and punitive damages claims at issue, as Insurance Code section 533 forbids insuring against intentional acts and indemnification of punitive damages is disallowed.

Defendant Centinela additionally argues that Defendant Cole's proportionate liability is far greater than any other party, given that she has been criminally convicted of assault with a deadly weapon arising from the same incident, making the $30,000 settlement figure an impermissible attempt to shield herself from her indemnification obligations.

In reply, Defendants Cole and Rosado argue that Defendant Centinela's motion incorrectly focuses on Plaintiffs' claimed damages of $13,430,566.40 as the benchmark for the good faith analysis. Defendants Cole and Rosado contend the relevant inquiry is not what Plaintiffs claim but what they would actually recover at the time of settlement, and that Defendant Centinela has produced no evidence contradicting the declarations establishing Defendants Cole and Rosado's financial insolvency or showing what Plaintiffs would actually recover.

Defendants Cole and Rosado also argue that Defendant Centinela has failed to meet its burden of proving the absence of good faith regarding proportionate liability. Defendants contend the good faith determination requires a rough approximation of the settling defendants' fair share of anticipated damages rather than a rigid mathematical comparison to claimed damages, and that the Court must consider all relevant factors, including insurance policy limits and financial condition, without mechanically applying any single factor.

Defendants Cole and Rosado further argue that their financial condition independently supports approval of the settlement. Defendants Cole and Rosado contend that even where damages are great and liability certain, a disproportionately low settlement is reasonable where the settling defendant is relatively insolvent and underinsured. Defendants Cole and Rosado assert that the $30,000 represents the full limits of their available insurance policy and that they have no other assets or means from which Plaintiffs could recover any additional amount, making the settlement the maximum available recovery from these defendants regardless of the ultimate damages determination.

In Schmid v. Superior Court (1988) 205 Cal.App.3d 1244, the Court found that a good-faith settlement can be established when the settlement is grossly disproportionate to the expected liability if the settling Defendant lacks assets to satisfy that liability. (See, Schmid, supra, 205 Cal.App.3d 1244, 1248.) However, the Co-Defendant in Schmid did not contest the Motion for a Good Faith Settlement. (Id.)

Here, Defendants Cole and Rosado have both provided declarations stating that they have no meaningful assets, which Defendant Centinela has not challenged. (Application Exhibit, E, F.) Thus, even if the settlement is well below their expected liability, Defendants Cole and Rosado would have no assets to satisfy a judgment outside the scope of their insurance policy. Last Defendant Centinela has made no showing of fraud or collusion.

Therefore, the Court grants the Application for Good Faith Settlement.